

**Tentative Rulings and Resolution Review Hearings
June 2, 2025
Department 64**

THIS CALENDAR WILL BE CALLED IN DEPARTMENT 43

Those appearing by CourtCall should use the dial in for Department 64.

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CAPITAL ONE, N.A. VS. TODD

Case Number: 23CVG-00254

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Plaintiff Capital One Bank, N.A. seeks to vacate the dismissal entered on June 12, 2023, and enforce the Stipulation Agreement filed on June 5, 2023. Although the motion was timely noticed, Defendant Gary Todd did not file an opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in May of 2023, which was filed with the Court on June 5, 2023. The terms of the agreement provide that Defendant agreed to pay Plaintiff recurring monthly payments of \$166.00, and a final payment of \$145.42.

In the event of a default, Defendant agreed to pay \$5,955.42 plus court costs of \$314.00, minus credits of \$2,781.00, for a total of \$3,488.42. The Declaration of Attorney Laura D'Anna establishes the following facts. Dismissal was entered on June 12, 2023. The last payment was received on December 5, 2024 (a part payment). Defendant has paid \$2,781.00. The balance now due is \$3,174.42 plus costs in the sum of \$314.00 for a total requested judgment of \$3,488.42. The amount of costs was a term of the Stipulated Agreement. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of

\$3,488.42. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: DILL

Case Number: 25CV-0207336

Tentative Ruling on Petition for Change of Name: Petitioner Dominick Nicholas Dill seeks to change his name to Dominick Nicholas France. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion for Issue and/or Evidentiary Sanctions: Plaintiffs move for an order imposing issue and/or evidentiary sanctions against Defendants for their willful failure to comply with a prior Court order. Specifically, Plaintiffs request the following:

- A finding that Defendants willfully failed to comply with court orders with respect to the production of documents;
- That as a result of Defendants' knowing, intentional, willful, oppressive, and malicious misconduct, it is conclusively established they are legally responsible for the Covid outbreak at the Windsor facility in September 2020 that caused the death of Plaintiffs; and
- It is conclusively established that Defendants knowingly, intentionally, willfully, oppressively, and maliciously neglected Plaintiffs by clear and convincing evidence after they contracted Covid.

Plaintiffs also request monetary sanctions in the amount of \$11,050. The present motion was previously on calendar on December 16, 2024 and February 10, 2025 but continued to today's date to permit Defendants to complete the production of documents.

Merits of Motion: On May 14, 2024, Plaintiffs served Defendant Windsor Redding with a Third Request for Production of Documents. On June 17, 2024, Windsor Redding provided written responses to the discovery. After meet and confer efforts, Plaintiffs filed a motion to compel on August 7, 2024. The Court heard and granted the motion on September 16, 2024. The Court's order dated September 25, 2024 required Defendants to produce the requested documents within 45 days and imposed sanctions in the amount of \$2,860. At the expiration of the 45 deadline, Defendants provided amended responses and a limited production of the documents. Since that time Defendants have never fully complied with the Court's prior order. Defendants argue that the breadth of the required discovery and the time to fully review and produce the discovery has prevented them from a full production. Defendants originally estimated "substantial completion" of production by the end of January 2025; however, their supplemental status filed on February 3, 2025, now provides that the production will be completed by February 15, 2025. Defendants' supplemental status filed on May 5, 2025, shows progress on the production but also provides that production has not been completed. It should be noted that Defendants have never sought a protective order nor requested additional time from the Court to produce the records.

The Civil Discovery Act defines a misuse of discovery as, among other things, the disobedience of a court order to provide discovery. CCP § 2023.010(g). A court is permitted to impose issue or evidentiary sanctions for a misuse of the discovery process. CCP § 2023.020(b) and (c). The

Court finds that Defendants have disobeyed the Court's prior order dated September 25, 2024. The Court also finds that there have been substantial delays in complying with the discovery process; however, the Court acknowledges the substantial efforts made by Defendants in obtaining, review and producing the documentation. In light of those efforts, the Court finds that evidentiary and issues sanctions are unwarranted under the circumstances. Based on the delay and the disobedience of the Court's prior order, the Court finds that monetary sanctions are warranted. Plaintiffs shall be awarded monetary sanctions in the amount of \$11,050.

The request for evidentiary and issue sanctions is **DENIED**. The request for monetary sanctions in the amount of \$11,050 is **GRANTED**. Plaintiffs shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Further Response to Requests for Production, Set Three: Plaintiffs move for an order compelling Defendants to produce all documents identified in their privilege log, to produce relevant documents without redactions, for monetary sanctions in the amount of \$10,200 and for issue and evidentiary sanctions. On May 5, 2025, Plaintiffs filed a Status Update that provides that rulings are no longer needed on the issue of privilege log and redacted documents. It also provides that issues raised related to the line testing documents "appears to be resolved." Based on the foregoing, the issues raised in Plaintiffs motion would appear to be moot. Plaintiffs request to compel further production is denied. The Court finds that issue, evidentiary and monetary sanctions are unwarranted under the circumstances. The request for sanctions is denied.

The motion is **DENIED**. Defendant Windsor Redding shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Depositions of Persons Most Knowledgeable Regarding Defendants' Organizational Structure: On February 18, 2025, Plaintiffs filed nine separate motions to compel the Person Most Qualified depositions of various Defendants on the issue of organizational structure. Plaintiffs also seek monetary sanctions in the amount of \$3,565. Finally, Plaintiffs are seeking issue and evidentiary sanctions against Defendants. Recently, five of the nine motions were withdrawn. Defendants' opposition indicates that despite delays, they will be providing each of the PMQs for deposition. Given Defendants' willingness to provide the deponents, the issues raised by the motion appear moot. Also given the willingness of Defendants to provide the deponents, the Court finds that issue, evidentiary and monetary sanctions are unwarranted under the circumstances.

The motions are **DENIED**. Defense counsel shall prepare an order consistent with the Court's final ruling.

Tentative Ruling on Motion to Compel Production of Documents of Defendant River Valley Regarding Insurance: Plaintiffs move to compel the production of documents from Defendant River Valley Healthcare & Wellness Center, LP's Person Most Qualified ("PMQ") related to the topic of insurance. Plaintiffs are also requesting sanctions in the amount of \$3,085. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. In March 2024, Plaintiffs served depositions notices for the Defendants Person Most Qualified on the topic of insurance. On August 5, 2024, the Court found good cause for the

depositions and ordered them to occur. On October 30, 2024, Plaintiffs deposed the PMQ from Defendant River Valley on the topic of insurance. The deponent was Farooq Mir, an attorney retained by River Valley to testify in this capacity.

Plaintiffs take the position that Mr. Mir did not have sufficient knowledge to testify as the PMQ, that he was unable to respond to all questions and that additional documents are required to be produced. The Court has reviewed the deposition transcript of Mr. Mir and finds he had sufficient knowledge and expertise to qualify as the PMQ on this topic. Plaintiffs fail to provide sufficient evidence that Mr. Mir did not qualify as the PMQ or that there are additional documents to produce. The Court notes that should further discovery show that there was a more appropriate PMQ or that there were other documents including insurance policies that should have been produced, that Plaintiffs would have the right to file a new discovery motion to compel a new deposition, and for sanctions. Plaintiffs' requests to compel an additional deposition or the production of additional documents are denied without prejudice.

The motion is **DENIED** without prejudice. Defendant River Valley shall prepare an order consistent with the Court's final ruling.

J.G. WENTWORTH ORIGINATIONS, LLC VS. H.J., REAL PARTY-IN-INTEREST

Case Number: 25CV-0207601

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor Heather Justice has agreed to transfer 198 monthly payments of \$500.00 each, commencing on December 1, 2027 through and including May 1, 2044, in exchange for \$25,000.00.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that "Interested parties" means, with respect to a structured settlement agreement, the payee, the payee's attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee's death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is "fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Section 10137(a). Ms. Justice has presented evidence that she is experiencing financial hardship and intends to use the funds on expenses, travel, and home improvement and repairs. She has no minor children and no support obligations. Ms. Justice has not sought to transfer any other portion of this annuity previously. Her Declaration indicates that she understands the terms of the transaction, although she has not sought independent legal or financial advice. The annuity is from a 2022 personal injury settlement. It was not intended for future medical care or living expenses.

The Court finds the transfer to be fair, reasonable, and in Ms. Justice's best interest based on the factors set forth in Ins. Code § 10139.5(b). The Court expressly finds that each requirement set forth in Ins. Code § 10139.5(a) has been met. The Petition is **GRANTED**. Petitioner did not

provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order.

LVNV FUNDING, LLC VS. BELL

Case Number: 24CVG-01476

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff LVNV Funding, LLC seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Gladys Bell by mail on November 27, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: PENDLETON

Case Number: 25CV-0207393

Tentative Ruling on Petition for Change of Name: Petitioner Marie-Rose Lane Pendleton seeks to change her name to Harper Sigrid Grey Kunde. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal ("OSC") issued on April 24, 2025, pursuant to Gov't Code § 68608(b) to Plaintiff for failure to appear and failure to timely prosecute. No response to the OSC has been filed. At the most recent review hearing on April 21, 2025, Plaintiff requested a continuance to retain counsel. Nothing further has been filed. It appears that Plaintiff has abandoned this action. Absent an appearance and good cause shown, the Court intends to dismiss the matter for failure to timely prosecute. An appearance is necessary on today's calendar.

PEOPLE VS. ROSS

Case Number: CVG21-0000575

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Lexington National Insurance Corporation moves to set aside summary judgment, discharge forfeiture, and exonerate bail. Respondent prosecuting agency County of Shasta opposes the motion. The Court notes that the County's Opposition was filed one day late. Plaintiff's Reply was filed four days late.

Defendant's Notice of Motion indicates that this Motion is made on the grounds that the Court lacked jurisdiction to enter a summary judgment, and CCP § 473. Code of Civil Procedure § 473(b) provides in relevant part, that the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and *shall be made within a reasonable time, in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.

Penal Code § 1305, regarding forfeiture of the undertaking of bail, provides at subsection (j), that a motion filed in a timely manner within the 180-day period may be heard within 30 days of the expiration of the 180-day period. The court may extend the 30-day period upon a showing of good cause.

Here, Defendant failed to appear on March 9, 2020, and notice of bail forfeiture was properly prepared and mailed to defendant's bail bond surety on March 10, 2020. The period for setting aside the forfeiture of the bond lapsed without defendant appearing in court, and without the bail bond agent having shown to the satisfaction of the court that the forfeiture be vacated and the bond exonerated. Therefore, Summary Judgment was entered on May 10, 2021. The instant Motion to Set Aside was filed March 27, 2025, nearly four years later, without any explanation for the delay in filing. Moreover, a review of the case file reveals that the bail agent previously moved to set aside summary judgment, vacate forfeiture, and exonerate bail, on June 3, 2021. That Motion was denied after hearing on June 28, 2021. Plaintiff fails to address the estoppel effect of the prior decision. Plaintiff does not request reconsideration of that decision. The Motion is DENIED. A proposed order has been lodged and will be modified and executed by the Court.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

Case Number: 23CV-0203171

Tentative Ruling on Motion for Summary Judgment: Defendants Vibra Healthcare, LLC and Vibra Hospital of Northern California move for summary judgment on the First Amended Complaint filed by Plaintiffs Richard Ward and Houva Ward on June 5, 2024. The First Amended Complaint alleges causes of action for Neglect and Physical Abuse of a Dependent Adult and Loss of Consortium. As a preliminary matter, the Reply was filed on May 5, 2025. Replies are due no less than eleven days prior to the hearing date. CCP § 437c(b)(4). No explanation was provided for the Reply being late, however, the Court will exercise its discretion to consider the late filed Reply as it does not change the outcome of the Court's tentative ruling.

Summary judgment may be granted where it is shown that the action has no merit or that there is

no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o); *Aguilar, supra*, at 849.

In the First Cause of Action, Plaintiffs allege Neglect and Physical Abuse of a Dependent Adult. In ¶ 27, Plaintiffs specifically refer to Welfare and Institutions Code § 15657, which is the attorney fee provision of the Elder Abuse and Dependent Adult Civil Protection Act (“the Act”). W&I §§ 15600, et seq. Rather than addressing the First Cause of Action as alleged under the Act, Defendants addressed the First Cause of Action as if Plaintiffs alleged medical negligence. While neglect under the Act and medical negligence are similar, they are not the same.

It is true that statutory elder abuse includes “neglect as defined in Section 15610.57” (Welf. & Inst.Code, § 15657), which in turn includes negligent failure of an elder custodian “to provide medical care for [the elder’s] physical and mental health needs” (*id.*, § 15610.57, subd. (b)(2)). But as we explained in *Delaney*, “neglect” within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from “professional negligence.” As used in the Act, neglect refers not to the substandard performance of medical services but, rather, to the “failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” (*Delaney, supra*, 20 Cal.4th at p. 34, 82 Cal.Rptr.2d 610, 971 P.2d 986.) Thus, the statutory definition of “neglect” speaks not of the *undertaking* of medical services, but of the failure to *provide* medical care. (*Ibid.*) Notably, the other forms of abuse, as defined in the Act—physical abuse and fiduciary abuse (Welf. & Inst.Code, § 15657)—are forms of intentional wrongdoing also distinct from “professional negligence.” (*Delaney, supra*, at p. 34, 82 Cal.Rptr.2d 610, 971 P.2d 986.)

Covenant Care, Inc. v. Superior Court (2004) 32 Cal. 4th 771, 783.

(a) “Neglect” means either of the following:

(1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.

(2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.

(b) Neglect includes, but is not limited to, all of the following:

(1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person

voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment.

(3) Failure to protect from health and safety hazards.

(4) Failure to prevent malnutrition or dehydration.

(5) Substantial inability or failure of an elder or dependent adult to manage their own finances.

(6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.

(c) Neglect includes being homeless if the elder or dependent adult is also unable to meet any of the needs specified in paragraphs (1) to (5), inclusive, of subdivision (b).

W&I § 15610.57.

“Physical abuse” means any of the following:

(a) Assault, as defined in Section 240 of the Penal Code.

(b) Battery, as defined in Section 242 of the Penal Code.

(c) Assault with a deadly weapon or force likely to produce great bodily injury, as defined in Section 245 of the Penal Code.

(d) Unreasonable physical constraint, or prolonged or continual deprivation of food or water.

...

(f) Use of a physical or chemical restraint or psychotropic medication under any of the following conditions:

(1) For punishment.

(2) For a period beyond that for which the medication was ordered pursuant to the instructions of a physician and surgeon licensed in the State of California, who is providing medical care to the elder or dependent adult at the time the instructions are given.

(3) For any purpose not authorized by the physician and surgeon.

W&I 15610.63.

Defendants provided an expert, Cheree White, R.N. who reviewed the First Amended Complaint and Plaintiff Richard Ward’s medical records and opined that, “There is no evidence in the medical records to show that Mr. Ward was physically abused.” *Decl. White* ¶ 10. Ms. White also opined that “Mr. Ward consented to all procedures that were performed as part of his care and treatment at Vibra. There is nothing in the medical records to suggest that Mr. Ward was physically abused by anyone.” *Id.* ¶ 11. While all of the briefing was directed at medical negligence, the expert’s opinion included the actual allegations in the First Cause of Action. The Court notes that the First Amended Complaint contains very general allegations without much detail. The scope of the defendant’s initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18. Defendants have presented expert opinion that refutes the claims made by Plaintiffs. Therefore, Defendants have met their initial burden and the burden shifts to Plaintiffs to show a triable issue of material fact.

Plaintiffs provide their own declarations detailing the care Mr. Ward received while hospitalized. This includes being provided a bed that was too small for his frame and being tied to the bed without his consent and over the objection of his wife. The Wards further provided evidence that

Mr. Ward had a large sacral open wound and no control of his bowels, yet Defendants' staff left Mr. Ward sitting in his own feces for more than two or three hours before changing him. Mrs. Ward declared that she complained about the bed length, the restraints, and time it took to change Mr. Ward on numerous occasions. Plaintiffs' expert, Pam Sharkey, R.N. reviewed the First Amended Complaint, the medical records, and the declarations from Plaintiffs and Defendants' expert. Ms. Sharkey opined that Defendants neglected Mr. Ward by letting him sit in his own feces and failing to provide a proper bed. Ms. Sharkey further provides the regulations regarding physical restraint and opines that Defendants did not follow them by failing to obtain consent from Mr. Ward and failing to inform the Wards that they had the right to refuse. Plaintiffs have raised triable issues of material fact as to the First Cause of Action.

The Second Cause of Action alleged Loss of Consortium. "There are four elements to a cause of action for loss of consortium: '(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; (2) a tortious injury to the plaintiff's spouse; (3) loss of consortium suffered by the plaintiff; and (4) the loss was proximately caused by the defendant's act.' " *Vanhooser v. Superior Court* (2012) 206 Cal. App. 4th 921, 927, citing *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 746, fn. 2. Both parties agree that this claim is derivative of the First Cause of Action. The same analysis applies.

The Motion for Summary Judgment is **DENIED**. Defendants are to provide an Order consistent with the Court's ruling.

WELLS FARGO BANK, N.A. VS. KAISER

Case Number: 24CVG-00725

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Lindsay Kaiser by mail on January 28, 2025. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff’s peace officer personnel records from custodian and non-party Shasta County Sheriff’s Office. Plaintiff does not oppose the Motion. However, an Opposition has been filed by Shasta County.

Merits of Motion: A motion to obtain a peace officer’s personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess motion*. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: “1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard. 2) A description of the type of records or information sought” and “3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.” Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. “Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the “materiality” of the information to the subject matter of the pending litigation and states upon “reasonable belief” that the agency has the type of information sought.” *Id.* This initial burden is a “relatively low threshold for discovery”. *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a “plausible factual foundation” for how the records are material to the subject matter of the pending litigation. *Id.* A “good cause” declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevance. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff’s Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Plaintiff is a former Deputy Sheriff with the Shasta County Sheriff’s Office. Plaintiff was deposed in this matter and testified to alleged mistreatment by coworkers at the SCSO, and discussed alleged retaliation and hostile workplace conduct which is similar to her allegations against the City of Redding. Plaintiff also testified regarding complaints and performance issues during her employment with the County. This provides the factual foundation for how her SCSO records are material to the subject matter of the pending litigation. The City’s discovery request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City Seeks: 1) Plaintiff’s employment evaluations; 2) Any disciplinary documents issued to Plaintiff; 3) Documents related to Plaintiff’s separation of employment; 4) Any complaints made by Plaintiff relating to allegations of sexual harassment, discrimination or workplace retaliation; 5) Any workplace investigations

involving alleged misconduct by Plaintiff; 6) Any workplace investigations involving allegations of misconduct made by Plaintiff; and 7) Plaintiff's wage records for the last four months of her employment.

The Court has reviewed each of the categories above in light of the evidence and argument provided in the Declaration of Nathan Jackson to determine whether good cause exists for each category. Given Plaintiff's allegations, the Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence.

The Motion is GRANTED. The Court will conduct an *in-camera* review of the documents prior to their release. All released documents will be designated Confidential under the protective order in this case. A proposed order was lodged with the Court but it will not be executed. Defendant is ordered to submit a new proposed order which omits the last two sentences regarding depositions. That portion of the proposed order is overly broad and is not properly before the Court. **An appearance is necessary on today's calendar to discuss scheduling the *in-camera* review.**

9:00 a.m. Review Hearings

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.

Case Number: 24CV-0204149

This matter is on calendar for review regarding status of responsive pleadings and trial setting. Defendants filed their Answer on April 3, 2025. It appears that this matter is ready for trial setting. However, the Court notes that today's hearing was reset from May 12, 2025 to June 2, 2025 due to an emergency courthouse closure. Notice of today's hearing was sent to Defendants but was not sent to Plaintiffs due to a clerical error. If all parties appear today the Court is prepared to set the matter for trial. This matter is designated a Plan III case, and the Court intends to set a trial date no later than January 13, 2026. Neither party has posted jury fees. The Court notes that Defendant filed a Notice of Posting Jury Fees on April 3, 2025, but the fees do not reflect as posted in the Court's file. This discrepancy may be addressed with the clerk. The parties are granted 10 days leave to post jury fees. If all parties are not present today due to the notice defect, today's hearing will be continued for trial setting.

GERALD E. DORFMAN AND SANDRA T. DORFMAN FAMILY TRUST VS. DRYSDALE, ET AL.

Case Number: 24CVG-01761

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

MARLIN VS. POPPIE'S PIZZA INC, ET AL.

Case Number: 24CV-0204099

This matter is on calendar for trial setting. This matter is designated a Plan III case, and the Court intends to set trial no later than January 13, 2026. Both sides have posted jury fees. The parties

are ordered to appear to provide the Court with available trial dates.

OLSON VS. COY, ET AL.

Case Number: 23CV-0203554

This matter is on calendar for review regarding status of mediation and trial setting. The previous date was vacated by stipulation and order dated July 2, 2024. Plaintiff filed a Status Statement indicating the parties are engaging in discovery, and were scheduled for mediation on May 6, 2025. They request an additional 30 days. This matter is continued to **Monday, June 30, 2025, at 9:00 a.m. in Department 64** for review regarding status of mediation and trial setting. No appearance is necessary on today's calendar.

PEREZ VS. MAXIMUS TREE WORKS LLC, ET AL.

Case Number: 24CV-0205260

This matter is on calendar for review regarding status of service. The Court's August 27, 2024 Order authorizing service of process on the California Secretary of State on behalf of Maximus Tree Works LLC, imposes an additional condition that has not been met. Plaintiff must file a proof of service (of summons, complaint, and the Court's August 27, 2024 Order) by mail at the addresses of attempted service set forth in the application on file. Additionally, there is no proof of service on file for Defendant Saul Ruiz. The Court also notes that a First Amended Complaint was filed April 15, 2025. This matter was filed over one year ago, and it is not at issue. No status statement has been filed. An appearance is necessary on today's calendar to provide a status of service.

RLI INSURANCE COMPANY VS. DEARMAN, ET AL.

Case Number: 24CVG-00729

This matter is on calendar for review regarding status of settlement. A dismissal of the last remaining Defendant, Jeannette Woolery, was entered on April 22, 2025. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

ROSS VS. C&K MARKET, INC.

Case Number: 24CV-0205210

This matter is on calendar for review regarding status of the case and trial setting. The previous date was vacated by the Court's March 24, 2025 Order. Defendant has filed an Answer, the matter is at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than December 2, 2025. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

RUEBER VS. LITHIA MOTORS, INC,

Case Number: 23CV-0201322

This matter is on calendar for review regarding status of arbitration. On March 14, 2023, the Court entered an order compelling this matter to arbitration. Defendant Lithia Motors, Inc. has filed a Case Management Statement indicating that the matter is set for arbitration on October 28-29, 2025. This matter is continued to **Monday, November 17, 2025, at 9:00 a.m. in Department 64** for review regarding status of arbitration. **No appearance is necessary on today's calendar.**

SCHWERDT, ET AL. VS. SCHLAPIA, ET AL.

Case Number: 24CV-0204563

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 6, 2025. Plaintiff has filed a status conference statement indicating that Plaintiffs request a 30-day continuance to meet and confer with Defendant Wampler regarding mediation and arbitration. This matter is continued to **Monday, June 30, 2025 at 9:00 a.m. in Department 64** for review regarding trial setting. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

This matter is on calendar for review regarding status of the case and status of retention of counsel. This matter is also on calendar today at 8:30 a.m. for hearing on an Order to Show Cause. The Court will advance the 9:00 a.m. review hearing to 8:30 a.m. Plaintiff is ordered to appear at 8:30 a.m. to discuss whether she has retained counsel and whether she intends to proceed with this matter.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

Case Number: 23CV-0203137

This matter is on calendar for review regarding status of the case. The Declaration of Ilan Janfaza indicates that Request for Entry of Default as to Bridgeway Inn & Suites, and Tera Sahara, Inc. is being concurrently filed with this declaration. Request for Entry of Default was only filed as to Bridgeway Inn & Suites. Mr. Janfaza also represents that proofs of service of the Statement of Damages are being concurrently filed. They were not. Counsel has submitted Declarations on multiple occasions indicating that Defendants David Lin and Laura Doe have not been served due to "bad address." This matter was filed September 1, 2023. No progress is being made to get the matter at issue. The Court notes that Counsel attempted to file multiple documents on May 21, 2025, but the filing was rejected by the clerk pursuant to CRC 2.303.

The Court has previously imposed sanctions, which have not been paid. The Court has previously issued an OSC re Dismissal, which was vacated at Plaintiff's request, upon assurances that this matter would soon be at issue. The Court will issue another OSC re Dismissal for failure to abide by California Rules of Court 3.110 and 3.1380. Given the long history of Plaintiff's failure to abide by the Rules of Court despite numerous continuances, it appears to the Court that no lesser sanction would be effective. Hearing on the OSC re Dismissal will be set for **Monday, July 14, 2025 at 8:30 a.m. in Department 64**. The clerk is directed to prepare a separate OSC re Dismissal.

SNYDER VS. U-HAUL INTERNATIONAL, INC, ET AL.

Case Number: 23CV-0203633

This matter is on calendar for review regarding status and trial setting. U-Haul Company of California has filed an Answer. There is no proof of service of summons on file for Defendant Jenay Hoffman. Additionally, the Court notes that U-Haul Company of California has filed a Motion to Compel Arbitration set for hearing on June 9, 2025. In the interest of judicial economy, the Court continues today's review hearing to **Monday, June 9, 2025, at 9:00 a.m. in Department 64** for review regarding status and trial setting. No appearance is necessary on today's calendar.

IN RE SYLVESTER**Case Number: 24PB-0032751**

This matter is on calendar for review regarding confirmation of receipt and acknowledgement of deposit. An Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account has been filed. The clerk is directed to close the file. No appearance is necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$1,279.00 U.S. CURRENCY**Case Number: 25CV-0207307**

This asset forfeiture matter is on calendar for review regarding status. Real Party in Interest Michael Shankles filed a Claim Opposing Forfeiture on March 11, 2025. No proof of service on the District Attorney has been filed. An appearance is necessary on today's calendar to discuss status of service and any related criminal proceedings.

THE PEOPLE VS. \$35,798.00**Case Number: CVPT22-0198924**

This asset forfeiture matter is on calendar for review regarding status of the criminal proceeding. This matter was stayed on February 28, 2022, by stipulation of the parties. No status report has been filed. An appearance is necessary on today's calendar to provide the Court with an update regarding the criminal proceedings.

VINCELLI VS. YEAGER FOOT AND ANKLE CENTER, ET AL.**Case Number: 24CV-0204503**

This matter is on calendar for review regarding status of counsel and trial setting. The previous trial date was vacated by the Court's order dated October 7, 2024. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than March 10, 2026. Defendant has posted jury fees, but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. Failure to post jury fees in that time will be deemed a waiver of the right to a jury trial. The parties are ordered to appear to provide the Court with available trial dates.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.**Case Number: 23CV-0203171**

This matter is on calendar for review regarding trial setting. The previous trial date was vacated pursuant to the Court's April 14, 2025 Order. The Court designates the matter as exempt from case disposition time standards. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.

IN RE WIDLER**Case Number: 24PB-0032724**

This matter is on calendar for review regarding confirmation of receipt and acknowledgement of deposit. No "Receipt and Acknowledgment of Order for the Deposit of Money Into Blocked Account" has been filed. No status report has been filed. The parties are ordered to appear to provide the Court with a status of the deposit of the funds into a blocked account.